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File No.: EXP202207291

RESOLUTION OF FILE OF ACTIONS

From the actions carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On June 16, 2022, a complaint was filed with registration number REGAGE22e00024963191, REGAGE22e00025188459, and REGAGE22e00026140247 before the Spanish Agency for Data Protection against MASMÓVIL IBERCOM, S.A. with NIF A20609459 (hereinafter, the complained party). The reasons for the complaint are as follows:

The complainant files a complaint for receiving commercial calls offering services from MÁSMÓVIL IBERCOM, S.A., indicating a chronology and calling lines, on mobile line ***PHONE.1, registered in the Robinson List on 09/18/2020.

Along with the notification, a certificate of registration in the Robinson List and documentary evidence of the received calls are provided.

Received calls:

- 06/16/22 at 19:11 hours from line ***PHONE.2
- 06/17/22 at 15:38 hours from line ***PHONE.3
- 06/17/22 at 19:42 hours from line ***PHONE.4

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), this complaint was forwarded to the complained party for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) by electronic notification, was not collected by the responsible party within the availability period, being understood as rejected in accordance with the provisions of Article 43.2 of the LPACAP on July 19, 2022, as stated in the certificate in the file.

Although the notification was validly carried out by electronic means, considering the procedure completed in accordance with the provisions of Article 41.5 of the LPACAP, an informational copy was sent by postal mail, which was duly notified on August 3, 2022. In this notification, the obligation to communicate electronically with the Administration was reminded, and information was provided on the means of access to such notifications, reiterating that, henceforth, notifications would be made exclusively by electronic means.

On September 16, 2022, a response letter was received in this Agency indicating that, after analyzing the complaint, the result obtained concerning the indicated numbering is that there are no results for calls. This means that this numbering has not been included in any authorized commercial action via telephone by XFERA.

THIRD: On September 15, 2022, in accordance with Article 65 of the LOPDGDD, the complaint filed was accepted for processing.

FOURTH: The General Subdirectorate of Data Inspection proceeded to carry out preliminary investigation actions to clarify the facts in question, by virtue of the functions assigned to control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions established in Title VII, Chapter I, Section two, of the LOPDGDD, being aware of the following aspects:

RESULT OF THE INVESTIGATION ACTIONS

1. It has been verified by the data inspection that the calling numbers (***PHONE.4, ***PHONE.3, and ***PHONE.2) are currently assigned to the operator LEAST COST ROUTING TELECOM S.L.
2. On November 15, 2022, information was requested from the operator of the complainant's line (ORANGE SPAGNE SAU) regarding the calls subject to the complaint, confirming their representative that these calls occurred on the date indicated by the complainant and were from the indicated lines.

3. On October 3, 2022, and November 15, 2022, information and documentation were requested from the operator LEAST COST ROUTING TELECOM S.L. regarding the reported facts. From the response sent by this operator, the following is inferred:

- LEAST COST ROUTING TELECOM, S.L. is a fixed telephony operator and telecommunications services provider, which sub-assigns its lines, such as lines ***PHONE.2, ***PHONE.3, and ***PHONE.4, to end customers or resellers (in this case STG GROUP), who use them directly (end customers) or who in turn resell them to their own customers or subscribers (resellers).

The end customers or the subscribers of the reseller are those who use the lines to make calls. LEAST COST ROUTING TELECOM, S.L. only accesses the "Traffic Data" of the calls made (the number of the line making the call, the recipient's number of the call, the date and time the call was made; as well as the

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duration of the same) in order to manage the monthly billing for the use of the line.

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The three (3) indicated lines, on their respective dates, are sub-assigned to STG GROUP S.A.C., a company located in Lima (Peru).

They do not have a Data Protection Representative in Spain.

LEGAL GROUNDS

I

Competence

According to the provisions of Article 114.1.b) of Law 11/2022, of June 28, General Telecommunications Law (hereinafter LGTel) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative actions.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

Finally, the Fourth Additional Provision "Procedure in relation to the competencies attributed to the Spanish Agency for Data Protection by other laws" establishes that: "The provisions in Title VIII and its development regulations shall apply to the procedures that the Spanish Agency for Data Protection must process in the exercise of the competencies attributed to it by other laws."

II

Right to the protection of personal data and privacy in relation to unsolicited communications, traffic and location data, and subscriber directories

Article 48 of Law 9/2014, of May 9, General Telecommunications Law (in force at the time the infringement was committed), under the heading "Right to the protection of personal data and privacy in relation to unsolicited communications, traffic and location data, and subscriber directories," provides in its section 1.b) the following:

"1. Regarding the protection of personal data and privacy in relation to unsolicited communications, end users of electronic communications services shall have the following rights:

(...)

b) To oppose receiving unwanted calls for commercial communication purposes made through systems other than those established in the previous letter and to be informed of this right."

III

Conclusion

Through the actions carried out by this Agency, it has been determined that the calls were not made by

XFERA (MÁSMOVIL IBERCOM, S.A.). The calling numbers ***PHONE.4, ***PHONE.3, and ***PHONE.2 are currently assigned to the operator LEAST COST ROUTING TELECOM S.L. LEAST COST ROUTING TELECOM, S.L., informs that the three lines indicated in the complaint are sub-assigned to STG GROUP S.A.C., a company located in Lima (Peru), for which no representative has been located in the European Union.

Therefore, based on the information provided in the previous paragraphs, it should be noted that the LGT does not confer the Spanish Agency for Data Protection with competencies over a company located in Peru.

Thus, in accordance with the aforementioned, by the Director of the Spanish Agency for Data Protection,

IT IS AGREED:

FIRST: TO PROCEED TO FILE the present actions.

SECOND: TO NOTIFY this resolution to MASMÓVIL IBERCOM, S.A. and to the complainant.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the Fourth Additional Provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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